

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MONGOLIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Mongolia, grounded in the environmental impact assessment system, the Law with the Long Name protecting river headwaters and forests, Aarhus rights, local khural governance, and documented herder and community campaigns

This guide uses the Mongolian legal terms you will actually encounter (the general and detailed environmental impact assessment, the licensed assessment entity, the environmental management plan, the soum and aimag Citizens' Representative Khurals, the Law with the Long Name, and so on), each explained in plain language where it first comes up. Mongolia's environmental laws were comprehensively revised and are amended often; the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Mongolian terms are given with a short English gloss.

A note on money. Budgets in this guide are in tögrög (MNT). Every figure is indicative — Mongolian community campaigns are typically run at very low cost by herder households and local movements, with occasional support from national organisations. Treat the ranges as a menu, not a bill.

A note on risk. Mongolia is a democracy with real legal openings, but campaigners here have been prosecuted: activists who defended the country's river-protection law have faced criminal proceedings and imprisonment, and organisers have been pursued over unsanctioned demonstrations. This guide therefore emphasises **lawful, documentary, and evidentiary routes**, which are also the ones that have actually worked. Section 13 deals with this honestly.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Mongolia — and this country has something almost no other has: **a national law that communities themselves wrote, which banned mining across a large share of the country's most vulnerable land**. Mongolian law requires projects to pass **environmental impact assessment** before proceeding — a **general assessment** conducted by the environment authority, and, where impacts warrant, a **detailed assessment** carried out by a specially licensed entity. The **2012 Law on Environmental Impact Assessment** was

enacted expressly to give effect to **Article 16.2 of the Constitution**, the right to a healthy environment, and it provides that where Mongolia's **international treaties** conflict with the law, **the treaties prevail** — which matters, because Mongolia is a party to the **Aarhus Convention**, giving you rights to environmental information, to participate in decisions, and to access justice. Regulations adopted in 2014 on **community engagement in assessment** require that information be disclosed before decisions are taken and that government and mining companies explain their intentions to affected groups.

And then there is the **Law with the Long Name**. Passed on 16 July 2009 under sustained pressure from herder movements — including a hunger strike outside Parliament — the *Law to Prohibit Mineral Exploration and Mining Operations at Headwaters of Rivers, Protected Zones of Water Reservoirs and Forested Areas* was drafted and promoted by the very communities gold mining was destroying. It was designed to protect a substantial share of Mongolia's ecosystems, and it created the legal basis for **revoking 1,782 mining licences — 391 operating and 1,391 exploration** — most of them placer gold licences in river valleys, cutting the national total from around 3,500 to 2,889.

That is a genuinely powerful toolkit. The honest counterweight is heavy. Mining dominates the economy — around a quarter of GDP and the overwhelming majority of export earnings — which shapes every institution's incentives. The assessment system's practical performance is weak: public confidence in it is low, it is undermined by poor work from licensed entities and ineffective oversight, cumulative impact assessment exists on paper but is barely applied, and **soum environmental inspectors depend on the very soum governors whose decisions they must police**. The Law with the Long Name was adopted but **largely not implemented**, so persistently that the **Supreme Court ordered the government to enforce it**, and the law has faced repeated attempts to weaken it. Herders have no private title to pastureland, which leaves customary users legally exposed. And campaigners who pressed hardest have faced prosecution.

What "winning" realistically means. Rarely a tidy national reversal. More often: a **licence revoked or refused** under the headwaters law; an assessment sent back or a **detailed assessment forced** where a general one was used; conditions tightened; an **environmental management plan** enforced; a licence **terminated** for non-compliance; a project delayed until its economics change; or — the distinctive Mongolian outcome — **evidence gathered by communities that forces enforcement of a law already on the books**. The realistic goal is to establish whether the project is even lawful where it sits, document non-compliance rigorously, and press the institutions that already have the power to act.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down the licence, the assessment tier, and above all **whether the site falls within a protected headwater, water zone, or forest area**.
2. **Documentation** — build an evidence record strong enough for the ministry, the khural, and a court.
3. **Local opposition** — organise herder households and the local community, whose testimony and river-basin knowledge are the evidence base.
4. **Legal challenges** — use assessment requirements, the headwaters law, Aarhus information and participation rights, and the courts.
5. **Media strategy** — generate coverage that raises the political cost and exposes non-enforcement.

No single step wins alone. In Mongolia the combination that works is **community-gathered evidence plus insistence that existing law be enforced**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Mongolia's system leans toward mining, assesses weakly, and enforces inconsistently — and the country's strongest environmental law has been chronically under-applied. Assessing that honestly helps you choose the right tools: the strongest routes are establishing that a licence sits **within a prohibited zone**, using **Aarhus-backed information requests** to obtain the file, documenting breaches of the **environmental management plan**, and taking the matter to the **administrative courts** and the ministry. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including non-enforcement and the risks to campaigners.

How to use this guide

Read Sections 1–3 and, importantly, Section 13 before acting. Then work Section 4 (Target Identification) — it tells you the licence, the assessment tier, whether the headwaters law applies, and the deadlines. Sections 5–8 run in parallel. Sections

9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, how to proceed safely.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Mongolia is a **unitary parliamentary democracy** with a national parliament, the **State Great Khural**, and a two-tier local structure: **aimags** (provinces) and the capital, subdivided into **soums** (districts) and **bags**. Each level has an elected **Citizens' Representative Khural** and an appointed **governor**. Environmental regulation rests chiefly on the **Law on Environmental Protection**, the **2012 Law on Environmental Impact Assessment**, the **Water Law**, the **Minerals Law**, and the **Law with the Long Name**.

The bodies that decide — and what each one controls

The environment ministry. The central administrative body for environmental affairs — currently the **Ministry of Environment and Climate Change** — conducts the **general environmental impact assessment**, reviews **detailed assessment** reports, licenses the entities permitted to carry out detailed assessments, receives annual **environmental management plans**, and can act on non-compliance, including by triggering **termination of a licence**.

The technical committee. A body that reviews strategic assessments and the licensing of assessment entities, with statutory timeframes for its decisions.

The mining and minerals authorities. The **Ministry of Mining and Heavy Industry** and the **minerals resources authority** grant and administer **exploration and mining licences** — the underlying right to be on the land at all, and the decision most often revoked when a site turns out to lie in a prohibited zone.

The aimag and soum khurals and governors. Local government matters more here than in many systems. The **Citizens' Representative Khural** takes local decisions and is required to **present its decisions to citizens and provide them with the necessary information** — an obligation frequently neglected, which is itself a documented source of conflict and a legitimate thing to demand. Soum governors administer land use locally, and **soum environmental inspectors report to those same governors**, a structural weakness worth understanding before you rely on local inspection alone.

The land and water authorities. The land administration agency handles land possession and use rights, and the water authorities administer abstraction permits and protection zones — critical, because the **diversion of natural watercourses is prohibited** and abstraction is tightly regulated.

Which one is "yours"? Ask: does the project hold an **exploration or mining licence**, and from whom? Which **assessment tier** applies — general only, or a **detailed assessment**? Is the site within a **river headwater, a water-reservoir protection zone, or a forested area**? Which **soum and aimag** is it in? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

For a mining or major development project the path is roughly:

1. **Licence.** The proponent obtains an **exploration** and later a **mining licence** from the minerals authority. This is the foundational right — and the one that the headwaters law can invalidate.
2. **General environmental impact assessment.** The environment authority conducts a **general assessment** of the proposal, deciding whether the project may proceed, may proceed subject to conditions, requires a **detailed assessment**, or should be rejected.
3. **Detailed assessment.** Where required, a **detailed environmental impact assessment** is prepared — but only by an entity **licensed by the ministry** for that purpose, after review of its database, facilities, personnel, and capacity. The report is reviewed by ministry experts.
4. **Community engagement.** Under the assessment law and the **2014 regulations on community engagement**, information in the public interest must be **disclosed before decisions are taken**; the government and the company must **explain their policies, views, and intended actions to interested groups**; and comments are to be received and considered. **This is your formal window**, and it is where an unlawful process most often shows itself.
5. **Environmental management plan.** Once approved, the project must prepare and implement an **annual environmental management plan**, submitting the following year's plan to the ministry **by 1 November each year**, and must **inform and report on its implementation to the local population, local government, and other**

- stakeholders.** This is a recurring, dated, enforceable obligation — and one of the most useful levers you have.
6. **Closure planning.** For mining and petroleum projects, a **restoration and closure management plan** must be submitted **no less than three years before proposed closure.**
 7. **Sanctions.** Non-compliance can lead to penalties and, for specified breaches, **termination of the licence.**

The rulebook — the policies that decide the outcome

- **The Law with the Long Name (2009).** Prohibits mineral exploration and mining at **river headwaters, protected zones of water reservoirs, and forested areas**, with an accompanying parliamentary resolution on implementing measures. If the site falls inside a protected zone, this is the strongest argument in Mongolian environmental practice.
- **The 2012 Law on Environmental Impact Assessment.** Was the correct tier applied; was the detailed assessment done by a licensed entity; was community engagement carried out; are management plans being filed and implemented?
- **The Constitution. Article 16.2** guarantees the right to a healthy environment — the provision the assessment law exists to implement. Land, water, forests and subsoil are state property, and **pastureland cannot be held in private ownership**, so herders hold customary and use rights rather than title.
- **The Water Law.** Abstraction is regulated and metered, the **diversion of natural watercourses is prohibited**, and sanctions extend to **revocation of water-use licences.**
- **International treaties.** The assessment law provides that **international treaties prevail** where inconsistent with it — which makes Mongolia's **Aarhus Convention** obligations on information, participation, and access to justice directly usable.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Mining has accounted for roughly a quarter of Mongolia's GDP, around a third of government revenue, and the large majority of export earnings; national development strategy treats it as the engine of growth; licences were issued in enormous numbers during the boom years; detailed assessments are commissioned and paid for by proponents and carried out by licensed firms competing for that work; and local inspectors answer to local governors. None of this is unlawful, but it explains the default lean toward approval — and why the community's decisive lever is usually **the existing prohibition and the documented breach**, rather than a fresh policy argument.

The overseers — who watches the decision-makers

- **The administrative courts** — the forum for challenging unlawful administrative acts, including licences and assessment decisions; take advice on procedure and time limits, which are strict.
- **The Supreme Court** — which has ordered the government to enforce the headwaters law, a precedent worth citing whenever non-enforcement is the problem.
- **The National Human Rights Commission** — for rights violations connected to displacement, water, and health.
- **The Environmental Inspection Agency and state inspectors** — enforcement, subject to the local-dependency caveat above.
- **The State Great Khural and its members** — a real route, since the headwaters law itself exists because communities persuaded Parliament.
- **The Aarhus Convention Compliance Committee** — an international mechanism to which members of the public may bring communications where a party fails to meet its obligations on information, participation, or access to justice.

Naming and using the right body matters: in Mongolia the most consequential early judgment is usually **whether the site lies in a prohibited zone** — because if it does, the fight is about enforcement of an existing ban rather than persuasion.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Mongolian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Mongolia sits inside the table: where a site falls within a **river headwater, water protection zone, or forested area**, you are not asking for a new decision — you are demanding enforcement of an **existing statutory prohibition** under which nearly two thousand licences have already been revoked. That is the strongest position available, and it changes the whole shape of a campaign.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (MNT)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local opposition only	20-30%	6-24 months	low	Local pressure; khural engages
Community engagement / comments	15-25%	1-3 months	low	On record; conditions or detailed assessment required
Information request (Aarhus-backed)	25-40%	1-3 months	minimal	The file obtained; illegality exposed
Complaint on management-plan breach	25-40%	3-12 months	low	Inspection; penalty; conditions enforced
Headwaters-law claim (prohibited zone)	45-65%	6-36 months	low-moderate	Licence revoked or suspended
Khural / local government route	25-40%	6-18 months	low	Local decisions and information forced
Administrative court challenge	30-50%	12-36 months	moderate	Act annulled; enforcement ordered
Media only	15-25%	1-6 months	low	Public knows; pressure rises
Docs + local opposition + media	30-45%	6-18 months	low	Pressure plus stronger case
All steps combined	50-70%	12-48 months	moderate	Licence revoked, assessment redone, works halted, or project abandoned

Key insight: all steps together are far more effective than any single one — and the Mongolian multiplier is the **headwaters prohibition**, because it converts a discretionary planning fight into a question of legality with an established remedy. The distinctive advantages are that prohibition, **Aarhus rights** made directly usable by the assessment law's treaty-primacy clause, the **annual management plan** as a recurring compliance hook, and a **Supreme Court precedent ordering enforcement**. The distinctive disadvantage is that Mongolia's problem is rarely bad law — it is **non-implementation**, which means the community usually has to supply the evidence the state should have gathered.

A note on cost: information requests, comments, complaints, and khural petitions cost almost nothing. Administrative litigation costs more but remains modest, and national environmental organisations and river movements have long supported local cases. The real investment is fieldwork — travelling river basins to document what is actually happening, which is precisely what Mongolian movements have done to force enforcement.

Effectiveness Visualization

SUCCESS PROBABILITY (licence revoked, assessment redone, works halted, or project abandoned)

FAVOURABLE SCENARIO (site within a headwater, water zone or forest; documented breaches; organised herder community):

All steps combined:	50-70%
Headwaters-law claim:	45-65%
Administrative court:	30-50%
Single step:	5-40%

TILTED SCENARIO (large strategic mine, no prohibition trigger, non-enforcement and local dependency):

All steps combined:	30-45%
Management-plan breach:	25-40%
Local + media:	15-30%
Single step:	3-15%

How to read this honestly. In Mongolia the strongest legal fact by a wide margin is that **the licence sits somewhere the law forbids mining** — a river headwater, a water-reservoir protection zone, or a forested area. Where that is true, thousands of licences have already been cancelled on that basis and the Supreme Court has ordered the government to apply the law, so your task is evidentiary and administrative rather than persuasive. Where the prohibition does not apply, the case rests on the assessment tier, the quality and licensing of the assessor, community engagement failures, and — often most usefully — **documented breaches of the annual environmental management plan**, which is filed, dated, and enforceable. And be clear-eyed: the recurring Mongolian failure is that good law goes unenforced, so expect to spend as much effort making an existing rule bite as you would elsewhere spend arguing for a new one.

Step Importance Ranking (When All Combined)

1. **Documentation** — uniquely in this series, documentation ranks first in Mongolia, because the binding constraint is evidence of what is actually happening on the ground.
2. **Legal challenges** — the headwaters prohibition, management-plan enforcement, and the administrative courts.
3. **Local opposition** — herder households supply the observation, the testimony, and the persistence.
4. **Information requests** — Aarhus-backed access is cheap and frequently decisive.
5. **Media and political pressure** — what turns documented non-enforcement into action, and what built the headwaters law in the first place.

Winning Mongolian campaigns combined systematic field documentation, insistence on existing prohibitions, information requests, and national political and media pressure.

What Mongolian Campaigns Actually Show

A few patterns recur. **Communities can write national law** — the *Law to Prohibit Mineral Exploration and Mining Operations at Headwaters of Rivers, Protected Zones of Water Reservoirs and Forested Areas* was drafted and promoted by representatives of communities damaged by gold mining, and adopted on 16 July 2009 after the **United Movement of Mongolian Rivers and Lakes** organised a hunger strike outside Parliament; it was designed to shield a large share of the country's ecosystems. **The law has real bite when applied** — it created the legal basis for revoking **1,782 licences**, comprising **391 operating and 1,391 exploration licences**, mostly placer gold in river valleys, reducing the national total from around 3,500 to 2,889. **Community fieldwork forces enforcement** — river movements conducted their own inspections along the Onggi, Taats, Baidrag, Zavkhan and Orkhon basins, documenting communities cut off from drinking water, herds blocked from rivers, sick livestock, and rivers running brown, and used that evidence to press for implementation; earlier, sustained community pressure in the **Onggi basin** brought most of the operations there to a halt, work recognised by an international environmental prize. **The courts will order enforcement** — the **Supreme Court** directed the government to enforce the law. **But implementation remains the wall** — the law was adopted and then largely not applied, faced repeated attempts at amendment, and its defenders have been prosecuted and jailed. The through-line: **in Mongolia the law is often already on your side; the campaign is about evidence and enforcement.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and area, project type and stage, and what is there now — **pastureland and its seasonal use**, winter camps, wells and springs, the **river and its headwaters**, forest, wildlife, and sacred sites such as ovoos. Pay particular attention to **water**: which river or spring, who and which herds depend on it, and whether the works involve abstraction or any **diversion of a watercourse**, which the Water Law prohibits. Obtain the **assessment report** and list every admitted impact with its page reference.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **licence** — exploration or mining, its number, holder, and boundaries; (b) the **assessment tier** — general only, or a **detailed assessment**, and which **licensed entity** prepared it; (c) which **soum and aimag** the site sits in, and what the **Citizens' Representative Khural** has decided; and (d) **whether the site falls within a headwater, water-reservoir protection zone, or forested area**, which is the decisive question.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a **licence revoked** because it lies in a prohibited zone; an assessment **rejected or a detailed assessment required**; a licence **terminated** for breaching the assessment law; a **water-use licence revoked**; an **administrative court** annulling the act; or the local khural withholding support and forcing disclosure. Map them and pursue at least two in parallel.

Question 4: When Is the Decision Final?

Diarise the deadlines. The **community engagement and comment period** in the assessment process is short and often thinly publicised. The **annual environmental management plan** is due to the ministry **by 1 November each year** — a fixed, predictable date on which you can put non-compliance on the record. **Administrative court** challenges have strict statutory time limits running from when you knew of the act, so confirm them with a lawyer immediately; and where earthworks or river works are under way, act at once, because damage to a watercourse is effectively irreversible.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who holds the licence and who owns them, whether the licence changed hands before works began, whether the operation is a large strategic project or a small placer operation, and which local officials are involved in permitting and inspection — remembering that **soum inspectors report to soum governors**. Use public sources — the licence registry and cadastre maps, company records, and khural minutes. Build a dated, sourced timeline, and route allegations properly rather than publishing unproven claims.

Output of Step 1: a one-page fact sheet with the exact location and coordinates, the licence details, the assessment tier and assessor, **whether the site is within a prohibited zone**, the khural position, every deadline including 1 November, and the money map.

Worked example: which lever is actually open

Suppose a placer gold operation begins in a river valley upstream of several herder families' winter camps, and within weeks the river runs brown and animals sicken. Working the questions: **Q1** — the works are in the river valley itself; the households and their herds depend on that water. **Q2** — you obtain the **licence number and cadastre boundary**, and establish which **assessment tier** applied and which **licensed entity** prepared any detailed assessment. **Q3** — the decisive question is whether the licence area lies within a **river headwater or water protection zone**; if it does, the **Law with the Long Name** prohibits the operation outright and the remedy is **revocation**, which has already been applied to hundreds of operating licences. In parallel: has the operator filed its **environmental management plan**, and is it implementing it? Is it **diverting the watercourse**, which the Water Law forbids? **Q4** — you act immediately on the river works, and diarise 1 November. **Q5** — the registry shows the holder and the licence history. In an afternoon you know that **the prohibited-zone question is the whole campaign** — and that your fieldwork documenting the brown river, the blocked access, and the sick herds is the evidence that will make the ban enforceable.

STEP 2: DOCUMENTATION

Documentation matters more in Mongolia than almost anywhere in this series, for a specific reason: the country's central problem is not weak law but **unenforced law**, and the state frequently lacks the field presence to know what is happening. Communities have repeatedly closed that gap themselves — travelling river basins, recording what mining had done, and using that record to force implementation. Your documentation is therefore not merely supporting evidence; **it is the input the system is missing**.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the works — and prove **where the licence sits**.

Location, above all. Record precise **coordinates** for the works, the river channel, springs, and the boundary of the licence area, and obtain the **cadastre map**. Because the decisive legal question is whether the site lies within a **headwater, water-reservoir protection zone, or forested area**, geographic precision is the single most valuable thing you can produce. Photograph with dates and GPS.

Water. Document the river, stream, or spring: its course, clarity, flow, and the points where households and herds use it. Establish the "before" state of the water, because the change is what people will later dispute.

Pasture and herding. Document seasonal pastures and movement routes, winter and spring camps, wells, and the number of households and animals dependent on the area. Since **pastureland cannot be privately owned**, your record of customary and actual use is what establishes the human stake.

Forest, wildlife, and sacred sites. Document forest cover, wildlife, and ovoos or other sites of cultural importance.

How to hold it. Keep everything dated, geo-referenced, and backed up in more than one place. Build a simple chronology and a map — the two things that make a field record usable by a ministry or a court.

LAYER 2: IMPACT ANALYSIS

Show what the project is doing, and whether it is lawful. Catalogue four things:

1. **Is it in a prohibited zone?** Compare the licence boundary and the actual works against headwaters, water-reservoir protection zones, and forest areas. This is the first and most important analysis, and it is geographic.
2. **Assessment integrity.** Was the correct tier applied — was a **detailed assessment** required and carried out? Was the assessor a **licensed entity**? Does the report address the river, the pasture, and the herding households, or is it silent on them? Are **cumulative impacts** with other licences in the same basin assessed — a requirement that exists in law but is barely applied in practice, which makes its absence both common and arguable.
3. **Management-plan compliance.** Obtain the **annual environmental management plan** and check performance against it: rehabilitation actually done, water measures in place, reporting to the local population actually carried out. Because the plan is filed on a fixed annual cycle, non-compliance is documentable and dated.
4. **Water conduct.** Whether abstraction is licensed and metered, and — critically — whether any **diversion of a natural watercourse** has occurred, which the Water Law prohibits outright.

Get expert eyes on it. A critique carries more weight when a qualified professional signs it. Mongolian universities, hydrologists, and national environmental organisations and river movements can assess water and rehabilitation evidence, and simple, credible **water sampling** upstream and downstream of the works, with dates and locations, is frequently the most persuasive technical material a community can produce.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms. Document:

- **Health and water access** — households cut off from drinking water, distances now travelled, contamination, and illness among people and **livestock**, which in a herding economy is both an economic and a health fact.
- **Livelihoods** — animals lost, pasture rendered unusable, camps abandoned, income lost, and households obliged to migrate. Quantify per household.
- **Community and culture** — displacement of herding routes, damage to sacred sites, and the loss of a way of life that is legally recognised as central to the country.

Package this layer twice: a rigorous version for the ministry and the courts, and a plain-language version in Mongolian for the khural, neighbours, and the press.

How to Structure Your Documentation

- **Phase 1: Location and baseline (Weeks 1-4)** — coordinates, cadastre, river and pasture, before further damage occurs.
- **Phase 2: Legality (Weeks 2-8)** — prohibited-zone analysis, assessment tier and assessor, licence history.
- **Phase 3: Human and economic (Months 2-4)** — households, herds, water access, losses.
- **Phase 4: Compliance monitoring (ongoing)** — seasonal photographs from fixed points and an annual review against the management plan before each 1 November.

Common Documentation Pitfalls (What Fails)

- **Vague location** — "near the river" is useless; coordinates and the cadastre map are everything, because the prohibition is geographic.
- **No "before" record of the water** — capture clarity and flow early; the change is what will be disputed.
- **Ignoring the management plan** — it is filed annually and is the easiest compliance lever to work.
- **Only environmental data** — herd losses and household displacement are what make the case human and quantifiable.
- **One-off documentation** — seasonal, repeated records are far more persuasive than a single visit.
- **Losing the archive** — back it up outside the soum.

Documentation Budget Breakdown (MNT)

Item	Low (volunteer)	Higher (supported)
GPS, photography, mapping	minimal	modest
Travel across the basin	modest	moderate
Water sampling and analysis	modest	moderate
Expert/academic review	often free	moderate
Legal advice and court fees	modest	moderate
Printing and khural submissions	minimal	modest

The dominant real cost in Mongolia is **travel** — distances are vast and the evidence is in the field. Fund it collectively; it is the best money a campaign here can spend.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Mongolian case is documentary or geographic. The job is knowing which body holds which record.

The minerals authority. The **licence file and cadastre map** — holder, type, boundaries, dates, and transfers. The boundary map is the document on which the prohibited-zone question turns.

The environment ministry. The **general assessment conclusion**, the **detailed assessment report** and the identity and licence of the entity that prepared it, the approval and its conditions, the **annual environmental management plans**, and inspection records.

The soum and aimag khurals and governors. Local decisions, land-use allocations, and the record of what was disclosed to citizens — remembering that the khural is **required to present its decisions to citizens and provide information**, so a failure to do so is itself a documented grievance you can raise.

Water authorities. Abstraction permits, metering, protection-zone delineations, and any authorisation touching the watercourse.

Protected-area and forestry records. Boundaries of protected zones and forest areas — the maps that answer the decisive question.

How to force a document open. Mongolia is a party to the **Aarhus Convention**, and the assessment law provides that **international treaties prevail** where inconsistent with it, so your right to environmental information is not merely domestic. Combine that with Mongolia's own transparency and information legislation when making requests, and if a body refuses without proper basis, that refusal is itself actionable — and, ultimately, capable of being raised through the Convention's compliance mechanism. The template at Section 8E uses this framing.

National organisations and movements. Mongolia has experienced river and environmental movements with deep expertise in exactly these fights, including the practice of community basin inspections. **Approaching them early is the highest-value single step**, because they know the licence system, the prohibited-zone maps, and the enforcement route.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the licensing and environmental authorities, and the local-ally entries point you to the movements and lawyers already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Mongolia, organising has a distinctive character because the affected population is often **dispersed herder households** rather than a village, and because the country's greatest environmental victory — a national law banning mining at river headwaters — was itself produced by exactly such communities organising into a movement. Local opposition here is not only pressure; it is the **observation network** that supplies the evidence the state lacks, and it is the constituency Parliament has responded to before.

Three principles carry special weight here: **organise by river basin, not by settlement** (the people affected by a mine

are strung along a watercourse across soums, and basin-wide organisation is what has worked); **make documentation the shared task** (herders travelling with their animals are the best-placed monitors in the country); and **use lawful channels deliberately** (Mongolian campaigners who moved outside them have faced prosecution, while those who documented, litigated, and lobbied changed the law).

PHASE 1: FOUNDATION (Weeks 1-6)

Step 1a: Start with the most affected — and start recording. Reach the households whose water, pasture, camps, or herds are directly affected, and begin a **dated, GPS-referenced record** immediately: the river before and after, the works, blocked access, sick animals.

Step 1b: Affinity groups by concern. Let people join through what they care about — drinking water, pasture and winter camps, herd health, forest, sacred sites. In herding communities, water and animal health are the concerns that mobilise fastest.

Step 1c: Form the group, contact a national movement, and get the maps. Constitute a **local group or movement** with minuted decisions, and approach a **national river or environmental organisation** early — they can help you obtain the **licence cadastre and protected-zone maps** that answer the decisive prohibited-zone question, and they have done this many times.

PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Step 2a: Community meeting. Hold a meeting of affected households — practically, often at a bag or soum centre — to inform, decide collectively, and mandate representatives. Bring the maps, the coordinates, and what you have established about the licence.

Step 2b: Take it to the khural. Petition the **soum Citizens' Representative Khural**, and demand that it exercise its obligation to **present decisions to citizens and provide information**. Ask specifically what it decided, when, and on what information. Escalate to the **aimag khural** where the basin crosses soums.

Step 2c: Use the community engagement window. Where an assessment is in progress, insist on the **disclosure and engagement** the assessment law and the 2014 regulations require, attend, submit written comments, and **document the process itself** — who was told, when, and whether the company genuinely explained its intentions.

Step 2d: File the information requests. Request the licence file, the assessment, and the **environmental management plan** (Section 8E). This is cheap, lawful, and frequently decisive.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organise the basin. Bring in the other soums and households along the same river, national river movements and environmental organisations, herder cooperatives, academics and hydrologists, and sympathetic members of the **State Great Khural** — remembering that Parliament passed the headwaters law under precisely this kind of pressure.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging before disagreements arise, and settle who holds the evidence archive, who signs submissions, who instructs any lawyer, and who speaks to the press.

Step 3c: Run a basin inspection. Coordinate a structured, documented **field inspection along the river basin**, recording conditions at multiple points with dates and coordinates — the method Mongolian movements used to demonstrate that the headwaters law was not being implemented. This is the campaign's most powerful single product.

PHASE 4: SUSTAINED PRESSURE (Months 6 onward)

Step 4a: Press the institutions that must act. Submit your evidence to the environment ministry and the inspection agency, the minerals authority (for revocation where a prohibition applies), the water authority, and the khural; petition members of Parliament; and, where the state simply does not act, take the matter to the **administrative courts**.

Step 4b: Public actions and media (ongoing) — lawfully. Press conferences, public meetings, petitions, and peaceful gatherings are established practice, and national media covers river and mining conflicts. Note that demonstrations require compliance with the applicable rules and that campaigners have been pursued over **unsanctioned demonstrations**; take advice, keep everything lawful and documented, and never confront operators or equipment physically — Mongolian campaigners who did so faced serious criminal consequences, and it damaged the wider movement.

Step 4c: Prevent failure points. Campaigns fail when they cannot state precisely where the works are, never obtain the cadastre and zone maps, miss the annual management-plan cycle, or exhaust themselves in a single season. Assign the monitoring, keep the archive, and pace the campaign to the 1 November cycle and to the parliamentary calendar.

Worked example: a movement that unlocks the strong levers

Herder households strung along a river valley see placer workings appear upstream; within a season the water is brown, herds are blocked from the bank, and animals are sick. Anger is immediate and someone proposes confronting the operators — the one course that has previously ended in prosecution. What converts the anger into force happens differently. First, several households begin a **dated, GPS-referenced record** at fixed points along the river. Second, the group contacts a **national river movement**, which helps obtain the **licence cadastre map and the protected-zone delineations** — and the decisive question is answered: does this licence lie within a **river headwater or water-reservoir protection zone**? Third, they **organise by basin**, drawing in households in the neighbouring soums and running a structured **basin inspection**, documenting conditions at a dozen points — exactly the evidence that has previously forced the state to act. Fourth, they **file information requests** for the assessment and the **environmental management plan**, and check performance against it. Fifth, they take the package to the **khural**, the ministry, the minerals authority with a demand for **revocation**, and members of Parliament — and, where nothing moves, to the **administrative court**, citing the Supreme Court's direction that the headwaters law be enforced. The lesson generalises: **in Mongolia, the coordinates you record and the zone maps you obtain in week one are what turn an existing prohibition into an actual revocation by month twelve.**

Opposition Building Budget: Year-Long Campaign (MNT)

Modest but travel-heavy. The recurring costs are **fuel and transport across the basin**, phone and data, printing for khural and ministry submissions, water sampling, and occasional legal fees. Herder households commonly contribute in kind — vehicles, horses, accommodation, and time. National organisations frequently support field inspections and legal work. Keep transparent, collective accounts, and prioritise spending on **field documentation**, which is the input that changes outcomes here.

STEP 4: LEGAL CHALLENGES

Mongolia's legal position is unusual: the substantive law is often already on the community's side, and the fight is about **applying it**. Three tracks — the administrative and regulatory route, the prohibition itself, and the courts and international mechanisms.

TRACK 1: THE ADMINISTRATIVE AND REGULATORY ROUTE (the front door)

- **Community engagement and comments.** Where an assessment is under way, insist on the **disclosure and explanation** the assessment law and the 2014 community-engagement regulations require, and submit written comments. Document failures — who was not informed, what was not explained — because a defective process is a ground of challenge.
- **Demand the right tier and a licensed assessor.** Where a project's real impacts warrant a **detailed assessment**, say so formally; and check that any detailed assessment was prepared by an entity actually **licensed** for that work, since the law restricts this and the technical committee vets capacity.
- **Enforce the environmental management plan.** The operator must file an annual plan **by 1 November** and **report on its implementation to the local population and local government**. Request it, compare it with reality, and complain formally where it is not being implemented — this is the most reliable recurring lever available, and breaches of the assessment law can lead to **termination of the licence**.
- **Water compliance.** Report unlicensed or unmetered abstraction, and above all any **diversion of a natural watercourse**, which is prohibited and can lead to **revocation of a water-use licence**.

TRACK 2: THE PROHIBITION — THE LAW WITH THE LONG NAME (the decisive lever)

- **Establish the geography.** The *Law to Prohibit Mineral Exploration and Mining Operations at Headwaters of Rivers, Protected Zones of Water Reservoirs and Forested Areas* (16 July 2009) does what its name says. If the licence area or the works fall within one of those zones, the activity is **prohibited outright**, and the remedy is **revocation of the licence** — a remedy already applied at scale, to **1,782 licences** including **391 operating** ones.

- **Demand revocation.** Submit the cadastre map, the zone delineation, and your field evidence to the minerals authority and the environment ministry with an explicit request that the licence be **revoked** under the law, and copy the khural and members of Parliament.
- **Invoke the enforcement precedent.** Where the authorities do not act, cite the **Supreme Court's order requiring the government to enforce this law** — non-enforcement is itself the recognised problem, not an unforeseen one.

TRACK 3: THE COURTS AND INTERNATIONAL MECHANISMS

- **Administrative courts.** Challenge unlawful administrative acts — a licence granted in a prohibited zone, an assessment conclusion reached without a required detailed study, a refusal of information. Time limits are strict and run from when you knew of the act, so take advice immediately.
- **Aarhus rights, directly usable.** Mongolia is a party to the **Aarhus Convention**, and the assessment law provides that **international treaties prevail** where inconsistent with it. That makes the Convention's guarantees of **access to information, public participation, and access to justice** arguments you can put domestically — and, where a systematic failure persists, members of the public may bring a **communication to the Convention's compliance mechanism**.
- **Human rights and parliamentary routes.** The **National Human Rights Commission** for rights harmed by water loss and displacement; and petitions to the **State Great Khural**, the institution that enacted the headwaters law in the first place.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE ROUTE (the front door)

Comments, tier and assessor challenges, management-plan enforcement, and water compliance — cheap, recurring, and capable of ending in licence termination.

TYPE 2: THE PROHIBITION (the decisive lever)

The headwaters law: if the site is in a protected zone, seek **revocation**, backed by the Supreme Court's enforcement direction.

TYPE 3: THE COURTS AND INTERNATIONAL MECHANISMS

Administrative courts, Aarhus-based arguments and the compliance mechanism, the human rights commission, and Parliament.

Legal Strategy Decision Tree

1. **Is the site in a headwater, water-reservoir zone, or forest?** → Seek **revocation** under the headwaters law; this is the strongest position available.
2. **Is a watercourse being diverted or water taken unlawfully?** → Report immediately under the Water Law; sanctions include revocation.
3. **Was the assessment tier wrong, or the assessor unlicensed?** → Challenge the assessment and demand a detailed study.
4. **Is the environmental management plan unfiled or unimplemented?** → Complain formally, and press for **termination** where the breach is serious.
5. **Are the authorities simply not acting?** → Administrative court, citing the enforcement precedent — and consider the Aarhus compliance route for persistent failures.

Litigation Success Factors

Geographic precision above all — coordinates, cadastre boundaries, and zone delineations; a documented field record over time; the licence and assessment file obtained through information requests; a specific remedy sought (revocation, termination, annulment) rather than a general grievance; and support from an experienced national organisation. Missing the geography is the most common way a strong Mongolian case fails.

What to Avoid: Legal Failures

Arguing impact when you could argue **prohibition**; imprecise location evidence; missing the annual management-plan cycle; letting administrative time limits lapse; and — critically — any physical confrontation with operators or equipment,

which in Mongolia has led to prosecution and imprisonment and has set back the wider movement.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Mongolia.

Licence or works inside a headwater, water-reservoir zone, or forest → revocation under the Law with the Long Name (the strongest ground). Feed it with: coordinates, the cadastre boundary, and the official zone delineation.

Diversion of a watercourse or unlawful abstraction → Water Law sanction and revocation. Feed it with: dated photographs of the channel and the works, and abstraction records.

Wrong assessment tier or an unlicensed assessor → invalid assessment; detailed study required. Feed it with: the project's real scale and the assessor's licence status.

Unfiled or unimplemented environmental management plan → penalty and termination. Feed it with: the plan itself, the 1 November cycle, and your seasonal photographs.

No community engagement or disclosure → defective process. Feed it with: your record of who was and was not informed, and what the company did and did not explain.

Ignored cumulative impacts across the basin → deficient assessment. Feed it with: the map of other licences in the basin and the report's silence.

Persistent non-enforcement → administrative court, and the Aarhus compliance route. Feed it with: your submissions, the authorities' silence, and the Supreme Court's enforcement direction.

The pattern: **lead with prohibition and location**, support with water and management-plan breaches, and always ask for a concrete administrative remedy.

STEP 5: MEDIA STRATEGY

Media matters in Mongolia because the country's environmental law was itself written under public pressure, and because the recurring failure — **non-enforcement** — is precisely the kind of story that moves ministries and members of Parliament.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the before-and-after images of the river, the **map showing the licence inside a protected zone**, a named herder whose animals are sick or whose winter camp is cut off, and the ministry's or authority's failure to respond. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a visible illegality + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Mongolia: **rivers running brown and water lost to herders**, **mining inside legally protected zones**, and **a law passed by public pressure that is still not being enforced** — a story with a built-in national narrative.

Know the Outlets That Cover This Beat

Map the national television channels and newspapers and their environment reporters, the online outlets, and aimag-level media, which reaches the affected soums directly. National coverage of river and mining conflicts is well established.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen

releases. Offer to take them to the basin — the site visit is what produces the images that carry these stories — and be scrupulously accurate.

Why media matters even when it doesn't make the front page

Coverage reaches the national organisation that will help with the maps and the litigation, the hydrologist who will assess your samples, and the member of Parliament who can ask why an existing prohibition is not being applied. In a country whose central problem is implementation, published evidence of non-enforcement is one of the few forces that reliably produces action.

Sample Media Timeline

Launch with the basin inspection findings; refresh at each milestone — the revocation request, the ministry's response or silence, the khural's decision, the court filing, and each 1 November when management plans fall due.

Media Measurement

Track coverage, but measure what matters: whether inspectors visit, whether the authority answers your revocation request, whether the khural discloses its decisions, and whether the works have actually stopped.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and — above all in Mongolia — **geographically precise**, with coordinates and map references. File them through the body's registry and keep the stamped, dated copy. Have a lawyer review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Soum, Aimag]: mining inside a protected river zone — map and photographs attached

Dear [name],

Placer/gold workings began at [coordinates] in [soum, aimag] on [date]. We attach the **licence cadastre map** and the **protected-zone delineation**, which indicate that the works lie within [a river headwater / a water-reservoir protection zone / a forested area] — where the 2009 Law with the Long Name **prohibits** mineral exploration and mining.

We also attach dated photographs of the [name] river from [date] and [date], showing [the change in the water]. [Number] herder households and around [number] animals depend on this water; [describe: blocked access, sick livestock, camps abandoned].

We have asked [the minerals authority / the ministry] to revoke the licence (letter dated [date], attached). I can take you to the basin. Could we speak this week?

[Name] · [Group] · [phone] · [email]

8B. Request for revocation under the Law with the Long Name

To: The [Mineral Resources Authority] and the Ministry of Environment and Climate Change Subject: Request to revoke licence No. [number] — works within a protected zone

We, the herder households of [bag, soum, aimag], submit that licence No. [number], held by [company], covers and is being worked at [coordinates], which lies within [a headwater of the [name] river / the protection zone of [reservoir] / a forested area].

Under the **Law to Prohibit Mineral Exploration and Mining Operations at Headwaters of Rivers, Protected Zones of Water Reservoirs and Forested Areas (16 July 2009)**, such activity is prohibited, and licences in these zones have previously been revoked.

We attach: the cadastre map; the zone delineation; dated, GPS-referenced photographs from [dates]; and a record of impacts on [number] households and their herds.

We request that the licence be revoked and the works halted, and that we receive a written reply. We note the

direction of the Supreme Court that this law be enforced.

[Signatories, contact, date]

8C. Comments in the community engagement process

Subject: Comments on the environmental impact assessment for [project], [soum, aimag]

To the Ministry of Environment and Climate Change [copy: soum and aimag Citizens' Representative Khurals]:

The affected households of [bag, soum] submit the following: 1. **Location and prohibition.** The site at [coordinates] lies within [zone]; the assessment does not address the prohibition applicable there. 2. **Water.** The project affects the [name] river, on which [number] households and [number] animals depend; abstraction and any works in the channel are inadequately assessed. [Where relevant: works appear to divert the natural watercourse, which is prohibited.] 3.

Pasture and herding. The assessment does not address seasonal pastures, movement routes, or winter camps at [locations]. 4. **Cumulative impacts.** [Number] other licences exist in this basin; their combined effect is not assessed. 5. **Engagement.** [Households at [places] were not informed; no explanation of intended actions was given as required.]

We request that the assessment be **rejected**, or that a **detailed assessment** be required addressing these matters.

[Households, coordinates, date]

8D. Petition to the soum Citizens' Representative Khural

Subject: Petition concerning [project] and request for disclosure of decisions

To the Citizens' Representative Khural of [soum]:

We, [number] households of [bags], request that the Khural: 1. **inform citizens** what decisions it has taken concerning [project] and licence No. [number], on what date and on what information — as it is obliged to do; 2.

provide us with copies of the relevant decisions and any land allocation; 3. **consider our evidence** (attached) that the works lie within a protected zone and are damaging the [name] river and our pastures; and 4. **make representations** to the aimag authorities, the ministry, and the minerals authority for revocation.

[Signatories, date, contact]

8E. Information request (with Aarhus framing)

Subject: Request for environmental information

To [the Mineral Resources Authority / the Ministry of Environment and Climate Change / the water authority]:

We request copies of the following environmental information: 1. licence No. [number] and its **cadastre boundary map**; 2. the **general assessment conclusion** and the **detailed environmental impact assessment**, with the identity and licence of the entity that prepared it; 3. the **environmental management plans** filed for [years], and reports on their implementation; 4. any **water use permit**, metering records, and the delineation of protection zones at [coordinates].

We note that Mongolia is a Party to the **Aarhus Convention** on access to information, public participation and access to justice in environmental matters, and that the Law on Environmental Impact Assessment provides that international treaties prevail where inconsistent with it. We request a reply within the applicable period, and a statement of reasons for any refusal.

[Name, address, date]

8F. Complaint of non-implementation of the environmental management plan

Subject: Complaint — failure to implement the environmental management plan, licence No. [number]

To the Ministry of Environment and Climate Change [copy: the environmental inspection authority; soum governor]:

We report that the holder of licence No. [number] at [coordinates] has failed to [file the annual plan due by 1 November / implement the following measures: rehabilitation of [area]; water protection measures at [location]; reporting to the local population and local government as required].

We attach dated, GPS-referenced photographs taken on [dates] from fixed points, showing the current condition of the site and the river.

We request **inspection, enforcement, and consideration of termination of the licence**, and a written reply.

[Group, date, contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Herders of [soum] seek revocation of mining licence inside protected river zone

[Number] herder households of [soum, aimag] have asked the authorities to revoke licence No. [number] held by [company], on the ground that the works at [coordinates] lie within [a river headwater / a water protection zone], where mining is **prohibited by the 2009 law** adopted after years of community campaigning.

"[Short, human quote from a herder]," said [name]. The households report [impact]. Photographs taken on [dates] show [the river's condition]. Nearly 1,800 licences have previously been revoked under this law.

Contact: [name, phone]. Maps, photographs, and interviews available on request.

8H. Submission to members of Parliament on non-enforcement

Subject: Non-enforcement of the Law with the Long Name in [soum, aimag]

To [Member of the State Great Khural]:

We write concerning licence No. [number] at [coordinates], which our evidence indicates lies within a zone where mining is prohibited by the 2009 law. We submitted a request for revocation to [authority] on [date] and have received [no reply / this reply].

We attach our basin inspection record, covering [number] points along the [name] river with dates and coordinates. We respectfully ask you to raise this matter, and the wider question of enforcement, in the State Great Khural.

[Group, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite **coordinates and licence numbers**, and have counsel review anything heading to court. **Precision decides outcomes here:** a submission that says "near the river" achieves nothing, while one with a cadastre boundary and a zone delineation can end a licence. Keep stamped copies, diarise the **1 November** management-plan date, and take advice on administrative time limits. Keep everything lawful and factual — Mongolian campaigners have faced prosecution, and the routes that have actually worked are documentary, administrative, and parliamentary.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can organise a basin or run a multi-year campaign. If you have limited time, you can still do real damage to a bad project — and in Mongolia one question decides almost everything. In rough order of impact for the effort:

1. **Record the coordinates and photograph the site, dated.** Precision is the whole game here, because the decisive legal test is geographic. A GPS point and a dated photograph of a brown river are worth more than pages of description.
2. **Get the cadastre map and the protected-zone delineation** (Section 8E). If the licence lies within a **river headwater, water-reservoir protection zone, or forested area**, mining there is **prohibited**, and revocation is the remedy — as it has already been for nearly 1,800 licences.
3. **Send the revocation request** (Section 8B). One letter with a map, coordinates, and photographs, addressed to the minerals authority and the ministry, is the highest-leverage single action available.
4. **Request the environmental management plan** and check it against reality (Sections 8E and 8F). It is filed annually by **1 November**, and non-implementation is a documented, enforceable breach.

5. **Petition the soum khural** and demand it disclose its decisions (Section 8D) — an obligation it often neglects.
6. **Contact a national river or environmental organisation.** They hold the maps, know the enforcement route, and have done this repeatedly.
7. **Send one accurate email to a reporter** (Section 8A), leading with the map and the before-and-after images.

If you do only the first three, you have answered the decisive question and put a formal, evidenced revocation request on the record. That is a real contribution, not a token one — and it is exactly how Mongolian communities have removed licences before.

WHEN THE SYSTEM IS TILTED

Mongolia's difficulty is unusual and worth naming precisely: the substantive law is often **better than the practice**. The country has a prohibition on mining in its most vulnerable places that most nations lack — and it has spent years failing to apply it.

What This Tilt DOES (and DOESN'T DO)

The tilt means mining dominates the economy and the policy agenda; assessments are commissioned by proponents and carried out by competing licensed firms; public confidence in the assessment system is low; cumulative impact assessment is barely applied in practice; **soum inspectors answer to soum governors**; and the headwaters law has faced sustained pressure to weaken it. It does **not** close the doors: the **prohibition exists and has been applied at scale**, the **Supreme Court has ordered its enforcement**, **Aarhus rights are directly invocable** through the assessment law's treaty-primacy clause, the **annual management plan** creates a dated compliance hook, the **administrative courts** are available, and **Parliament has responded to community campaigns before** — it passed this law because of one.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Site inside a protected zone, with precise evidence.** The strongest position in Mongolian practice: your case is that an existing ban is being ignored, and there is precedent at scale for the remedy.
- **Mixed.** No prohibition trigger, but a weak assessment, an unlicensed assessor, or an unimplemented management plan. Weight shifts to assessment challenges, compliance enforcement, water breaches, the khural, and media.
- **Entrenched.** A large strategic project of national economic importance, or a small operation locally protected by the officials who should inspect it. Assume administrative inertia; concentrate on documentary evidence, escalate above the soum level, use Parliament and the courts, and treat suspension and delay as real wins.

Documented Mongolian Dynamics

The record shows both the achievement and the wall. **Communities wrote the law** — the headwaters law was drafted and promoted by representatives of communities harmed by gold mining and adopted on **16 July 2009**, with an accompanying parliamentary resolution on implementing measures, after the **United Movement of Mongolian Rivers and Lakes** organised a hunger strike outside Parliament; it was intended to protect a large share of the country's ecosystems, and one of its founders had already forced most of the operations in the **Onggi River basin** to stop, work recognised with an international environmental prize. **When applied, it works** — it created the legal basis for revoking **1,782 licences**, including **391 operating** and **1,391 exploration** licences, mostly placer gold in river valleys, cutting the national total from around 3,500 to 2,889. **Communities have had to enforce it themselves** — river movements inspected the **Onggi, Taats, Baidrag, Zavkhan and Orkhon** basins and documented communities deprived of drinking water, herds blocked from rivers, sick animals, and rivers running brown, precisely to show the law was not being implemented. **The courts have backed enforcement** — the Supreme Court ordered the government to enforce it. **But the law was adopted and then not applied**, faced repeated amendment attempts, and its most prominent defenders were prosecuted and imprisoned after moving beyond lawful protest. The lesson: **the law is your ally; the campaign is evidence, escalation, and patience — and it must stay lawful.**

Assessment Framework — Determine Your Situation

Ask: does the site lie in a headwater, water-reservoir zone, or forest — and can we prove it with coordinates and official maps? Is a watercourse being diverted? Was the assessment tier right and the assessor licensed? Is the management plan filed and implemented? Will the khural disclose its decisions? Is the soum level compromised, meaning we must escalate

to aimag and national bodies? Can we reach a national organisation? The answers tell you whether this is a revocation case or a compliance case.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Mongolian environmental campaigning has used petitions, public meetings, press conferences, hunger strikes outside Parliament, and structured community inspections — and it was the lawful, sustained version of this that produced a national law. Demonstrations are subject to notification and permission requirements, and campaigners have been pursued over **unsanctioned demonstrations**. Most importantly: **physical confrontation with mining operations has ended very badly in Mongolia**, with prominent activists prosecuted and imprisoned after an incident involving firing at mining equipment, which was used to discredit the wider movement and to justify pressure on it. Take legal advice, keep everything peaceful and documented, and let the maps, the evidence, and the institutions do the work. This guide notes such tactics exist; it does not advise breaking the law.

Honest Assessment

Tilted fights are harder, and Mongolia's particular frustration is watching a good law go unapplied. But "harder" is not "hopeless": Mongolian communities drafted national legislation, forced the revocation of nearly two thousand licences, stopped most of the operations in an entire river basin, and obtained a Supreme Court direction to enforce the law. Concentrate force where the tilt is weakest — **the prohibition, the coordinates, and the documented breach** — escalate above the local level when it is captured, and keep the campaign strictly lawful.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and in Mongolia it has a characteristic local shape. Read your situation actor by actor, and publish documents rather than accusations.

The soum level. The most consequential structural weakness in the system: **environmental inspectors depend on soum governors**, so where a governor favours an operation, local inspection cannot be relied on. Signs: complaints that go nowhere, inspections that find nothing, licences and land allocations granted quietly. Lever: **escalate above the soum** — to aimag authorities, the ministry, the inspection agency, and Parliament — and document the local failure as part of your case.

The khural's information duty. Where a Citizens' Representative Khural takes decisions and does not present them to citizens, that is both a documented source of conflict and a demandable obligation. Lever: a formal petition for disclosure (Section 8D), which also creates a record.

The licensed assessment entities. Detailed assessments are prepared by firms licensed by the ministry but paid by proponents and competing for repeat work, and the system's practical performance is widely regarded as poor. Signs: a report silent on the river, the pasture, or other licences in the basin. Lever: challenge the assessment and the assessor's licence status.

The licensing boom. Enormous numbers of licences were issued during the mining boom, some in places where mining was later prohibited — which is why nearly 1,800 were cancelled. Signs: an old licence being worked in a protected zone. Lever: the cadastre map and the revocation request.

The companies. Establish the holder and any transfers from the licence registry and company records — documentary, provable facts. Where a foreign parent is involved, its own disclosure and financing obligations may matter, and Mongolian law obliges banks and financial institutions not to fund projects harmful to the environment, society, and health.

How to act on it, safely. Document from official records before you speak. Route genuine allegations to the national **anti-corruption authority**, the **environmental inspection agency**, and the **National Human Rights Commission** — and, above all, into your **revocation request, your administrative case, and your submissions to Parliament**, where they are consequential. Do not publish unproven accusations about named individuals, and never confront operators physically: in Mongolia that path has ended in imprisonment and has cost the movement dearly.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Mongolia the timeline is shaped by two rhythms: the **season**, since fieldwork and river conditions change through the year, and the **1 November** management-plan cycle, which gives you a fixed annual moment to put non-compliance on the record.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Location and evidence). - **Record coordinates and photograph the works and the river**, dated and from fixed points — the priority above everything, because the decisive test is geographic. - Identify the target precisely (Step 1): licence number and holder, assessment tier and assessor, soum and aimag, and every deadline. - **File the information requests** for the cadastre map, the zone delineation, the assessment, and the management plan (Section 8E). - Contact a **national river or environmental organisation**.

Weeks 4-12 (Formal action). - Answer the decisive question: **is the site within a headwater, water-reservoir zone, or forested area?** - If yes, send the **revocation request** to the minerals authority and the ministry (Section 8B). - **Petition the soum khural** for disclosure and support (Section 8D); escalate to the aimag khural where the basin crosses soums. - Submit **comments** in any live assessment process (Section 8C), documenting engagement failures. - Hold the community meeting and launch media on the map and the river images (Steps 3 and 5).

Months 3-6 (Basin organisation and compliance). - Organise across the basin and run a **structured field inspection** at multiple points, dated and geo-referenced (Step 3, Phase 3). - Obtain and analyse the **environmental management plan**; complain formally where it is unimplemented (Section 8F). - Report any **watercourse diversion or unlawful abstraction** to the water authority. - Complete the human and economic layer — households, herds, water access, losses (Step 2, Layer 3).

Months 6-12 (Escalation). - Where the authorities do not act, escalate: **members of Parliament** (Section 8H), the inspection agency, the National Human Rights Commission, and the **administrative court**, citing the Supreme Court's enforcement direction. - Prepare submissions for the **1 November** management-plan deadline. - Sustain media, particularly on non-enforcement.

Beyond 12 months. - Expect the enforcement phase to run for years; maintain **seasonal monitoring** and the archive. - Return to the 1 November cycle annually with an updated compliance record. - Where failures are systematic and domestic remedies are exhausted, consider a **communication to the Aarhus compliance mechanism**.

Warning Signs — Act Early

Survey markers or camps appearing in a river valley; earth-moving equipment arriving; the river changing colour; herds blocked from the bank; a licence transfer; an assessment notice; a khural decision you were not told about. Each is a trigger to **record coordinates and photograph that day**, and to request the cadastre map — because in Mongolia the case is won or lost on precision about location.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: establish the geography first and prove it with coordinates and official maps; ask whether the site is in a **prohibited zone** before arguing anything else; organise by **river basin**; run structured field inspections; use information requests early; work the **annual management-plan cycle**; escalate above a captured soum level; involve national organisations and Parliament; and stay strictly lawful. Losing campaigns: describe locations vaguely; argue impact when they could argue prohibition; rely on local inspection alone; miss the annual cycle; and — most damagingly — resort to confrontation, which in Mongolia has led to imprisonment.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Mongolia takes several forms, and it is worth naming them so you recognise a win when you get one: - a **licence revoked** because it lies in a river headwater, water-reservoir protection zone, or forested area; - a **licence terminated** for breach of the assessment law, or a **water-use licence revoked** for unlawful abstraction or diversion; -

an assessment **rejected**, or a **detailed assessment forced** where a general one was used; - an **environmental management plan actually implemented** — rehabilitation done, water measures in place, reporting to local people delivered; - a **khural forced to disclose** its decisions and to take a position; - **enforcement of a prohibition that existed on paper** — the characteristic Mongolian victory; - and, at the largest scale, **a law written by communities**, under which nearly two thousand licences have been cancelled.

Mongolian herders and river movements have achieved every one of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If your site lies in a prohibited zone and you can prove it, keep going — this is a case about enforcing an existing ban, and the precedent for the remedy is extensive. If there is no prohibition trigger, the realistic path is compliance: the assessment tier, the assessor's licence, the management plan, and the water rules, worked patiently and annually. If the soum level is closed to you, do not exhaust yourself there — escalate. And if continuing would require stepping outside the law, **stop**: in Mongolia that road has led to prison and has harmed the movement more than any single mine.

The Bottom Line

Mongolia's system is dominated by mining, assesses weakly, and enforces inconsistently — its assessment process commands low public confidence, cumulative impacts are barely considered in practice, and local inspectors answer to the officials they must police. But Mongolia also gives communities something extraordinary: **a national law, written by affected communities themselves, prohibiting mineral exploration and mining at river headwaters, water-reservoir protection zones, and forested areas** — under which **1,782 licences**, including **391 operating** ones, have been revoked. Around it sit real supporting tools: an assessment law enacted to give effect to the **constitutional right to a healthy environment**, which makes Mongolia's **Aarhus Convention** rights to information, participation, and justice directly usable; **community engagement** requirements; the **annual environmental management plan** due each **1 November**; a **Water Law** that forbids diverting a watercourse; **administrative courts**; a **Supreme Court direction that the prohibition be enforced**; and a Parliament that has legislated in response to herder movements before. Communities that record coordinates the day they see the works, obtain the cadastre and zone maps, ask first whether mining there is prohibited at all, organise by river basin, run their own documented inspections, use information requests, work the annual compliance cycle, escalate above a captured local level, and keep everything strictly lawful have removed licences, restored rivers, halted operations across whole basins, and written the national law that protects them. No single step wins; the combination does. Start today by taking a GPS point, photographing the river, and asking for the map that shows whether this mine is legal at all.